

3. 9:00 AM CASE NUMBER: C23-01267

CASE NAME: L. J. VS. CONTRA COSTA COUNTY

JUDGMENT ON THE PLEADINGS

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa's Motion for Judgment on the Pleadings ("MJOP"). The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately 1987, Plaintiff was placed in the foster home of Mr. and Mrs. Boutte by Defendants. (¶ 24.) From approximately 1993 to 1998, when Plaintiff was approximately six to eleven years old, Plaintiff was repeatedly sexually abused by Mr. Boutte. (¶ 25-26.) During that time, Plaintiff disclosed the abuse to two different social workers at different times. (¶ 27.) The social workers were agents and/or employees of Defendants. (*Ibid.*) Despite the complaints, no action was taken and no investigation was completed. (*Ibid.*)

In approximately 1999, Plaintiff was placed in the Stars Adolescent Center group foster home in San Leandro, California ("Facility"). (¶ 28.) From approximately 1999-2002, Plaintiff was sexually abused by a male staff member at the Facility. (¶ 29-30.) During this time, several nurses employed by the Facility allowed, observed, participated in, and/or facilitated the abuse. (¶ 31.) Again, no action was taken and no investigation into the abuse was conducted. (*Ibid.*)

Plaintiff generally alleges that at all relevant times Defendants knew or should have known about the abuse and/or the possibility of abuse from the perpetrators. (¶¶ 34-46.)

Plaintiff filed the initial Complaint on May 26, 2023, alleging a single cause of action against the County for negligence. The County filed an Answer on October 16, 2023. The County then filed the instant motion for judgment on the pleadings on May 27, 2026.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.*

(2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2008) p. 7:295.)

Analysis

Whether a public entity or employee has a duty to the plaintiff is usually a threshold issue to determine before addressing immunity. The parties do not dispute that the County and its employees owed a duty to Plaintiff. In fact, the County acknowledges as much in its motion. (Motion at 6:13-15.) Instead, the focus of the County's MJOP is whether the County's employees are entitled to discretionary act immunity – and therefore, the County itself is also entitled to immunity.

Plaintiff argues that discretionary act immunity does not apply. In addition, even if discretionary act immunity does apply, the County is still liable based on breach of mandatory reporting duties – which are separately actionable.

Discretionary Act Immunity

The County argues that the recent case of *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 is controlling. As summarized by the *K.C.* court, the “operative complaint alleged: (1) K.C. was sexually assaulted at two separate foster care placements in the 1970's; (2) K.C. gave notice to County – via social workers – of this abuse; and (3) no investigative or corrective action was taken.” (*Id.* at 616.) Except for the timeframe, the facts alleged in this matter are extremely similar.

The *K.C.* court began its analysis by noting that “[w]hether or not a public employee is immune from liability under [Government Code] section 820.2 depends ... upon whether the act [or omission] in question was ‘discretionary.’” (*Id.* at 617.) It recognized that such immunity does not extend to all decisions made by public employees, but that “discretionary immunity ‘is limited to policy and planning decisions, and does not reach ‘lower level decisions that merely implement a basic policy already formulated.’” (*Ibid.*) The *K.C.* court then went on to explain at length why the discretionary immunity under Government Code section 820.2 applied to the case before it:

The social workers' decisions at issue relate to “the investigation of child abuse” (*Jacqueline, supra*, 155 Cal.App.4th at p. 466) and discontinuation of a foster home placement (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1466 (*Becerra*)) “based upon suspicion of abuse” (*Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 881 (*Alicia*)). They not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” (*Kemmerer, supra*, 200 Cal.App.3d at p. 1438) but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity's decisionmaking or planning process” (*Barner v. Leeds* (2000) 24 Cal.4th 676, 688 (*Barner*)). (See *Alicia, supra*, at p. 883 [continuing exercise of discretion “in favor of the protection of minor children”].) These qualities hold true for, as here, “preliminary determinations” that “reports of possible abuse” “did not warrant initiation” of further action. (*Jacqueline, supra*, at p. 468; see *Ortega v. Sacramento County Dept. of Health & Human Services* (2008) 161 Cal.App.4th 713, 733 [“[E]valuation of information is an integral part of ‘the exercise of the discretion’

immunized by [Government Code] section 820.2.”]; cf. *Conway v. County of Tuolumne*, *supra*, 231 Cal.App.4th at p. 1015 [police officer’s decision “to investigate or not investigate” a vehicle accident immunized by Gov. Code, § 820.2].)

The K.C. court went on to explain the policy reasons in favor of upholding immunity for social workers. (*Id.* at 618.) The Court then noted that, on appeal, K.C. argued that the social worker’s failure to investigate or take corrective action was ‘operational and ministerial’ because it was done ‘in the course of the continuing supervision of her foster care’; and those types of decisions are not discretionary, policy-type decisions. (*Ibid.*) K.C. argued that the “decision to remove a child from his or her natural parents and place that child in custodial foster care must be distinguished from decisions made while supervising a foster child *after* the decision to undertake custody and initiate foster care is made. While the former decisions may be discretionary, the latter are operational and ministerial.”

Those arguments mirror the arguments made by Plaintiff in this action. For example, Plaintiff argues in her opposition that “there is a clear line of demarcation between the basic policy decision to place a child in foster care and the ministerial acts of county social workers implementing that decision. While the former is entitled to immunity under Gov. Code section 820.2, the latter decisions are not.” (Opp. at 11:22-25.) The K.C. court addressed these arguments:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285 (*Gabrielle*); *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381 (*Christina*).) Nor do we question that “maintenance of a child in a foster home involves an obligation of continued supervision” and much of what is required “in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” (*Ronald S. v County of San Diego* (1993) 16 Cal.App.4th 887, 898.) However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are “[no] less ‘discretionary’ for purposes of the immunity of Government Code section 820.2 than the original placement decision.” (*Becerra, supra*, 68 Cal.App.4th at p. 1466.) We do not accept the notion that a “subjective decisionmaking process” “could [be] transmute[d]” “into a ministerial act” (*Ronald, supra*, at p. 897) simply because that process assesses incidents that occurred within a foster home.

The K.C. court then addressed the arguments that the demurrer should be overruled because “the operative complaint did not indicate ‘an employee of the County made a considered ... decision’ or ‘actually exercised’ ‘discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.’” (*Id.* at 619.)

While a finding of immunity is precluded “solely on grounds that ‘the [affected] employee’s general course of duties is “discretionary””’” (*Caldwell, supra*, 10 Cal.4th at p. 983, italics omitted) and “requires a showing that ‘the specific conduct giving rise to the suit’ involved an actual exercise of discretion, i.e., a ‘[conscious] balancing [of] risks and advantages”’” (*ibid.*, italics omitted), “a strictly careful, thorough, formal, or

correct evaluation” is not mandatory (*ibid.*, italics omitted). “Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” (*Id.* at pp. 983–984; see *Gabrielle, supra*, 10 Cal.App.5th at p. 1285 [“Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart and lungs shortly thereafter.”]; *Christina, supra*, 220 Cal.App.4th at p. 1381 [discretionary immunity “applies even to ‘lousy’ decisions in which the [social] worker abuses his or her discretion, including decisions based on ‘woefully inadequate information.’”].) (*Id.* at 619.)

As is the case here, the *K.C.* court summarized its analysis of the above with respect to the allegations of the complaint before it:

Here, under a “fair reading” of the complaint (*Caldwell, supra*, at p. 984), *K.C.* essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” (*Caldwell, supra*, at p. 984, fn. & italics omitted.) (*Id.* at 619-20.)

Accordingly, the *K.C.* court found that the County’s demurrer was properly sustained without leave to amend. (*Id.* at 620.)

Plaintiff attempts to distinguish *K.C.* by primarily relying on *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465. Initially, it is worth noting that the *K.C.* court was provided with this authority and discussed it in a footnote, noting that *D.G.* addressed whether discretionary immunity was a proper basis for granting summary judgment “and is therefore inapposite.” (*K.C.* 109 Cal.App.5th at 620 fn. 9.)

“Summary judgment ... provides a method by which, if the pleadings are *not* defective, the court may determine whether the triable issues apparently raised by them are real or merely the product of an adept pleading.” (*Leo F. Piazza Paving Co. v. Foundation Constructors, Inc.* (1981) 128 Cal.App.3d 583, 591, fn. 4 italics in original.) Conversely, “[t]he purpose of a demurrer is to test the legal sufficiency of a pleading not to test the evidence or other extrinsic matters.” (*Ibid.*) In contrast to *D.G.*, the instant case involves a defective complaint. As such, *D.G.* is not applicable.

Plaintiff also cites *Elton v. County of Orange* (1970) 3 Cal.App3d 1053 as support for their position. There, the court determined that decisions about the maintenance, care, or placement of a child ‘do not achieve the level of basic policy decisions’ and are not immune from liability under section 820.2. (*Id.* at 1058; see *Opp.* at 11:13-21.) It has been noted that *Elton* has limited, if any, precedential value as it was decided before the adoption of statutes requiring social workers to exercise discretion. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) It was also persuasively distinguished in *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887 which found *Elton* to be a “difficult decision.” (*Id.* at 898.) As the *Ronald S.* court explained: “Selecting and certifying a foster home for care of dependent children seems to us to be an activity loaded with subjective

determinations and fraught with major possibilities of an erroneous decision. It appears to us that foster home placement, like adoption placement, constitutes an activity of a co-equal branch of government, and that the discretionary decisions made in connection therewith should be deemed beyond the proper scope of court review.” (*Ibid.*)

This rationale applies with equal strength to decisions related to removing a child from a foster home based on allegations of abuse.

Mandatory Reporting Duties

Plaintiff points out in opposition that the County’s MJOP fails “because Plaintiff sufficiently alleges breaches of mandatory duties for which there is no immunity.” (Opp. at 11:19-20 citing *Holman v. County of Butte* (2025) 111 Cal.App.5th 177, Govt Code § 815.6.) The Complaint does specifically allege a basis of liability against the County under California Government Code section 815.6. (¶¶ 58, 59, 71.) Section 815.6 states:

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

The Complaint alleges several alleged mandatory duties which were allegedly not complied with. (¶¶ 21, 59, 71.)

The County does not address this alleged basis for liability in its MJOP. As the County’s notice indicates, its MJOP is “brought on the ground that discretionary immunity under Government Code section 820.2 bars Plaintiff’s negligence claim against the County.” The negligence claim, however, is based on both alleged discretionary actions as well as alleged violations of mandatory duties. The County’s opening papers do not address the alleged violations of mandatory duties as a basis for the negligence claim. It does not discuss liability under section 815.6 at all.

“A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) “The purpose of the notice requirement ‘is to cause the moving party to ‘sufficiently define the issues for the information and attention of the adverse party and the court.’” (*Ibid.*) “Sometimes this purpose is met notwithstanding deficient notice. For example, it may be sufficient that the supporting papers contain the grounds for the relief sought, even if the notice does not.” (*Kinda, supra*, 247 Cal.App.4th at 1277.)

Here, the County failed to not only give notice of its intent to argue that there is no basis for Plaintiff’s claims under the mandatory duties alleged in the complaint, but it also failed to make any such arguments in its opening papers. Instead, it first addressed the issue in reply.

“It is elementary that points raised for the first time in a reply brief are not considered by the court.” (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.) As such, the Court is under no obligation to address the

County's arguments as they were not properly raised. Even if the Court were to address the County's arguments, they would fail.

"A demurrer [or motion for judgment on the pleadings] does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) "A [motion for judgment on the pleadings] must dispose of an entire cause of action to be sustained." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) To the extent the County is claiming that the allegations do not support a 'negligence' cause of action, if "the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against the [motion for judgment on the pleadings]." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Here, the Complaint is clear that it is alleging violations of mandatory duties as a basis of the negligence cause of action. For example, in the section titled "Basis for Liability Against County," the Complaint states:

County is directly liable for negligence under California Government Code Section 815.6 for its failure to discharge mandatory duties set forth in, *inter alia*, Welfare and Institutions Code sections 328, 16501(f), and 16504; Health and Safety Code section 1522, *et seq.*, Penal Code sections 11165.7, 11165.9 and 11166; Department of Social Services Child Welfare Services Manual sections 31-320, 31-401, *et seq.*, and 31-501. (¶ 59.)

Despite arguing that the Complaint did not state a cause of action based on mandatory duties, the County asserts that the complaint "suggests that the County is directly liable for negligence under 815.6 for failure to discharge mandatory duties under the following statutes, none of which form an independent private (sic) of action," then listing the above authorities. The County provides no citation to support its position that "none" of those statutes or manual sections "form an independent private [right] of action."

As noted by Plaintiff, the *Holman* court found that Penal Code section 11166 provides for a mandatory duty to cross-report known or suspected instances of child abuse or neglect. (*Holman*, supra, 111 Cal.App.5th at 192-97.) The court went on to explain:

"We likewise reject the County's argument that the second cause of action fails because section 11166, subdivision (j), does not authorize a private right of action. As our Supreme Court explained in *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490 []: 'If the predicate enactment is of a type that supplies the elements of liability under section 815.6 – [that is,] if it places the public entity under an obligatory duty to act or refrain from acting, with the purpose of preventing the specific type of injury that occurred—then liability lies against the agency under section 815.6, regardless of whether private recovery liability would have been permitted ... under the predicate enactment alone.' (*Id.* at p. 500.) In such a scenario, "[i]t is section 815.6, not the predicate enactment, that creates the private right of action." (*Id.* at pp. 499-500 *italics in original.*)" (*Id.* at 197.)

The Court need not address whether the other authority Plaintiff relies upon provide for a private right of action at this time.

Stay

Plaintiff seeks a stay of this matter pending the California Supreme Court's ruling on *K.C.* While the case has been fully briefed, the California Supreme Court has not scheduled oral argument. As it is unknown when a ruling on the appeal will be issued, the Court declines to stay the proceedings indefinitely pending the decision from the California Supreme Court.

Conclusion

The County's MJOP is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02588
CASE NAME: JAVETA JOHNSON VS. YAQUELIN REYES
RE KEITH JORDAN PETITION FOR APPROVAL OF COMPROMISE OF CLAIM (PERSON WITH A DISABILITY)

FILED BY:

TENTATIVE RULING:

Petitioner Sandra Jordan, the duly appointed guardian ad litem herein on behalf of the claimant Keith Jordan (the "Claimant"), filed a Petition for Approval of Compromise of Claim (Person with a Disability) on or about February 11, 2026 (the "Petition for Approval of Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Petition for Approval of Compromise was set for hearing on June 22, 2025. At the request of the moving party, the matter was continued to August 10, 2026. See Order entered June 22, 2026.

Analysis

The Petition for Approval of Compromise is unopposed. The Court has considered the verified Petition for Approval of Compromise.

The proposed terms indicate \$6,000 in attorneys' fees and expenses of \$2,716.60 paid out of the Claimant's share, totaling \$8,716.60 and leaving a balance of \$6,283.40 for the Claimant out of the \$15,000 in settlement funds earmarked for the Claimant. The \$6,000 attorneys' fees represents 40% of Claimant's recovery based on contingency fee arrangement. The Petition for Approval of Compromise indicates that "[t]he money will be held by Sandra Jordan for the benefit of Keith Jordan."

Aside from the two issues discussed below, the Court concludes the proposed terms are just and reasonable.

As set forth in the tentative ruling for the prior court hearing date, the Court is concerned about the 50% split of the total expenses (\$5,433.20) given the non-equal split of the settlement proceeds. The Court is also concerned about what safeguards will be put in place to ensure that the proceeds will be used for benefit of Claimant.